

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

(S.D.) MT

MAUSKOPF, J.
J. ORENSTEIN, M.J.

FILED RICHARD DICKISON

IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

Plaintiff,

COMPLAINT

★ AUG 24 2010 ★

-against-

BROOKLYN OFFICE

CV 10 - 3875

POLICE OFFICER HENRY LEWIS OF THE 115TH PRECINCT,
POLICE OFFICER SEIDMAN OF THE 115TH PRECINCT and
UNIDENTIFIED NYPD SUPERVISORS,

JURY TRIAL DEMANDED

Defendant(s).

-----X
The plaintiff, complaining of the defendants, by his attorney, FRED LICHTMACHER,
ESQ., respectfully shows to this Court and allege:

JURISDICTION

- 1 Jurisdiction is founded upon the existence of a Federal Question.
- 2 This is an action to redress the deprivation under color of statute, ordinance, regulation,
custom or usage of rights, privileges and immunities secured to plaintiff by the Fourth and
Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. § 1983 as
well as pursuant to the common law of the State of New York.
- 3 Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 (a) (3 & 4).
- 4 Venue is appropriate pursuant to 28 U.S.C. §§ 1391 (b) (1 & 2).

PARTIES

- 5 The plaintiff, RICHARD DICKISON, is an adult male resident of the County of Queens, City
and State of New York.

6 Upon information and belief, at all times hereinafter mentioned, the CITY OF NEW YORK, (NYC) was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and at all times relevant defendants, POLICE OFFICER HENRY LEWIS OF THE 115TH PRECINCT, POLICE OFFICER SEIDMAN OF THE 115TH PRECINCT and UNIDENTIFIED NYPD SUPERVISORS were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

7 Upon information and belief, at all times hereinafter mentioned, defendants were each employed by, NYC, as members of its police department.

8 Upon information and belief, that at all times hereinafter mentioned, NYC, its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT (NYPD), including all the police officers thereof.

9 The NYPD, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

10 This action arises under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983.

11 Each and all of the acts of the defendants alleged herein were done by the defendants, acting as state actors acting under the color of law.

STATEMENT OF FACTS

12 On November 29, 2009 at approximately 5:00 A.M., plaintiff was sleeping in his bed inside his apartment at 38-01 112th Street, Apartment 1F in Corona, New York.

13 Plaintiff's girlfriend, with whom he resides, was returning to the apartment and knocking on the door for an extended period of time.

14 Dickison did not hear her knocking and remained asleep.

15 Thereafter, plaintiff was woken by a heavy banging on the door, which sounded as though someone was trying to kick their way into the apartment.

16 Upon waking up to the heavy banging on his door at such an early, plaintiff immediately called 911.

17 Plaintiff was on the phone with a 911 operator for approximately three minutes, when the operator instructed him to check who was at the door.

18 Plaintiff saw that there were two police officers at his door, an officer who were later identified as defendant LEWIS and defendant SEIDMAN.

19 Plaintiff opened the door, and Seidman immediately stated in sum and substance "what is your f---ing problem?"

20 Plaintiff then asked if he could speak to Lewis privately and walked a few paces down the hall with Lewis.

21 Plaintiff explained to Lewis that although he heard the banging on the door, he did not immediately open the door because the building is not safe and because it was so early in the morning that he felt scared to do so.

22 Lewis asked plaintiff to name some of the drug dealers who reside in the building, but plaintiff declined.

23 Lewis then stated, in sum and substance, "I'll just arrest you."

24 In response, and without further prompting, plaintiff put his hands against the wall.

25 Plaintiff remained with his hands against the wall for approximately twenty seconds when he was sprayed with pepper spray or a similar substance directly into his left eye by Lewis.

26 Plaintiff did nothing to provoke Lewis or justify Lewis's use of force; plaintiff was with his hands against the wall the entire time.

27 After spraying plaintiff on the left side of his face, Lewis then moved to the right side of plaintiff and sprayed the pepper spray directly into that eye, once again without legal justification.

28 While Lewis was spraying plaintiff for the second time he stated in sum and substance, "do you want more?"

29 After plaintiff was sprayed, the defendants exited the building without arresting plaintiff.

30 The pepper spray was caked around plaintiff's eyes, and he could not see. He did not realize that defendants had left, and remained with his hands against the wall even though his eyes were burning.

31 Approximately five minutes later, while plaintiff remained with his hands against the wall, the defendants called plaintiff outside.

32 Plaintiff followed the defendants' instruction, but had to feel his way out of the building because he could not see and because the officers did not assist him.

33 Defendants sat Dickinson on the stoop outside, and plaintiff remained uncuffed and not arrested.

34 Plaintiff was screaming in pain while he was sitting on the steps.

35 A neighbor called an ambulance, and it was only at that point that the defendants searched

plaintiff's pockets and placed him under arrest.

36 Defendants arrested plaintiff despite their not having probable cause to believe he had committed, or was about to commit, a crime.

37 Immediately prior to being placed under arrest plaintiff had been sitting on his front stoop screaming in pain from the pepper spray.

38 The paramedics instructed defendants that plaintiff did not need to go to the hospital, and the officers then transported plaintiff to the 115th precinct.

39 One defendant Unidentified NYPD Supervisor, spoke with Lewis and Seidman, told them they had a suit coming, but instead of voiding the false arrest, he left the scene.

40 Plaintiff has bad knees from prior knee surgeries and wears knee braces that he was not allowed to retrieve before being transported to the precinct.

41 When defendants removed plaintiff from the car at the precinct, they forcefully pulled him out of the car intentionally sending him to the ground directly onto his knees, which he had told them he needed braces for, causing pain and an exacerbation of an existing injury.

42 Plaintiff was falsely charged with Obstructing Governmental Administration in the Second Degree (Penal Law §195.05) and Attempted Assault in the Third Degree (Penal Law §110/120.00-1).

43 Plaintiff was placed in a cell at the precinct before being transported to Central Booking.

44 Plaintiff was arraigned at approximately 6:15 P.M. on November 29, 2009, approximately thirteen (13) hours after his arrest.

45 The false charges were adjourned in contemplation of dismissal on August 2, 2010.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
VIA THE USE OF EXCESSIVE AND UNREASONABLE FORCE

46 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

47 The plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was unlawfully subjected to excessive and unreasonable force, by the defendants.

48 The uses of force employed by the defendants were taken without authority of law and without any reasonable necessity to use any force much less the excessive force that they employed and the force employed was used without legal justification, without plaintiff's consent, with malice, gratuitously and with a sadistic intent to inflict pain and suffering.

49 Defendant Seidman is liable to the plaintiff pursuant to the Fourth Amendment as he failed to perform pursuant to his affirmative duty to intervene as he had a reasonable opportunity to prevent Lewis from needlessly and sadistically pepper spraying the plaintiff.

50 Any officer who was present for any part of a use of force against the plaintiff, and who failed to intervene, is liable to the plaintiff for violation of his rights pursuant to the Fourth Amendment for failing to intervene when he had a reasonable opportunity to do so.

51 As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution being more particularly

plaintiff's right to be free from the use of excessive and unreasonable force.

52 That acts by the defendants, including but not limited to the use of pepper spray and intentionally tripping plaintiff when pulling him out of the police car, constituted acts of excessive force against the plaintiff.

53 By reason of the unlawful use of excessive, unnecessary and unreasonable force, the plaintiff was harmed physically requiring plaintiff to receive medical treatment, plaintiff incurred medical bills, he was subjected to physical pain, humiliation, embarrassment, anxiety, and that he was subjected to various other physical and emotional harms, he was pecuniarily harmed, suffered with loss of bodily function and was otherwise harmed.

54 By reason of the aforesaid, the plaintiffs have been damaged in a sum not to exceed THREE HUNDRED THOUSAND (\$300,000.00) DOLLARS, plaintiff is entitled to awards of punitive damages, and that an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 and THE FOURTH AMENDMENT
FALSE ARREST

55. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

56. Plaintiff's rights were violated pursuant to the Fourth Amendment of the United States Constitution made applicable to the states by virtue of the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that he was falsely arrested by the defendants.

57. Plaintiff was confined by defendants, defendants intended to confine plaintiff, plaintiff was conscious of his confinement and plaintiff did not consent to the confinement which was not

otherwise privileged.

58. As a direct consequence of defendants' actions, plaintiff was deprived of rights, privileges and immunities pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and more particularly, his right to be free from arrest without probable cause.

59. The false arrest was caused by the defendants without any legal justification, without authority of the law and without any reasonable cause or belief that plaintiff was in fact guilty of crimes.

60. Defendants who were aware of the false arrest and permitted the illegal detention to commence and/or continue, are liable to plaintiff by virtue of their failure to act pursuant to their affirmative duty to intervene.

61. By reason of the foregoing, plaintiff was subjected to pecuniary harms, he was subjected to great indignities, humiliation and anxiety, he was handcuffed, deprived of his liberty, forced to appear in court, he was prevented from conducting his normal affairs of business and he was otherwise harmed.

62. By reason of the foregoing, plaintiff has been damaged in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS, he is entitled to an award of punitive damages; and an award of attorneys' fees pursuant to 42 U.S.C. § 1988 is appropriate.

WHEREFORE, plaintiff demands judgment against the defendants in a sum not to exceed THREE HUNDRED THOUSAND (\$300,000.00) DOLLARS, plus punitive damages, and that an award of reasonable attorneys' fees is appropriate pursuant to 42 U.S.C. § 1988 on the First Cause of Action; in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS plus punitive damages on the Second Cause of Action; along with costs and

disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: August 19, 2010
New York, New York



FRED LICHTMACHER (FL-5341)

Attorney for Plaintiffs
The Empire State Building
350 5th Avenue Suite 7116
New York, New York 10118
(212) 922-9066

To: Michael Cardozo
Corporation Counsel City of New York
100 Church Street
New York, New York 10007